

90% COMPLETE[< Previous Lesson](#)[Next Quiz >](#)

11.1 Student Visa Classes

Focus Questions:

- *What determines which kind of visa an international student should apply for?*
- *What kind of study must an F-1 student be engaged in to maintain his/her status?*
- *What are the two types of practical training?*
- *What is the M-1 visa program?*
- *What visa class would exchange students be in?*

Students must have a student visa to study in the United States, unless they are from Canada or Bermuda. The course of study they intend to pursue and the kind of school they plan to attend (e.g., K-12, college/university, vocational) will dictate what kind of visa is necessary.

F-1 and M-1 visas are the most common visas for international students. The Department of Homeland Security explains the fundamental differences between the visas:

"F-1 and M-1 students share the same primary purpose for coming to the United States, however, F-1 students enroll in more traditional academic programs, while M-1 students enroll in vocational programs. Because these two types of programs are different in nature, the types of benefits an international student may be eligible for and how long they may remain in the country depend on whether they are an F-1 or M-1 student."

M-1 student visa holders are not permitted to:

- Work in a full-time job outside of campus

- Study for a full-time course on a part-time basis (schools are required to strictly check attendance)
- Transfer from one school to another one after six months of their program's start date (they can do so, however, before the six-month mark)

Remain in the US to pursue an undergraduate or other type of degree once they are finished their course Please review this helpful infographic from the Department of Homeland Security; doing so will be helpful for USATC exam preparation.

F & M

STUDENT STATUS: KNOW THE DIFFERENCE

F-1 INTERNATIONAL STUDENTS		M-1 INTERNATIONAL STUDENTS
Are in an academic program, often with a core academic curriculum.		Are in a vocational program, typically without a core academic curriculum.
Are eligible for annual vacation.		Are not eligible for annual vacation.
Can change their major or program of study.		Cannot change their major or program of study.
Can transfer anytime during their program or begin a new program after completing one.		Can only transfer in the first six months after arrival and must apply to U.S. Citizenship and Immigration Services for transfer by filing Form I-539, "Application to Extend/Change Nonimmigrant Status."
Can work during and after their program of study, with permission.		Can only work after their program of study ends and with permission.
Can participate in up to four types of work including, on-campus, off-campus for economic hardship, curricular practical training (CPT) and optional practical training (OPT).		Can participate in one type of work, practical training (PT), one month for every four months of their program.
Can remain in the United States for the duration of their program of study.		Can only remain in the United States for up to one year unless they apply for an extension.
Can stay in the United States for up to 60 days after their program or OPT end date.		Can stay in the United States for up to 30 days after their program or PT end date.

For more information visit StudyintheStates.dhs.gov/Maintaining-Your-Status

The other main type of visa for international students is the J-1 exchange visitor visa. In summary, these are the main three categories of student visa as defined by **US Immigration and Customs Enforcement**.

- F-1 STUDENTS – Non-immigrant students whose primary purpose is to complete an academic course of study at an SEVP-certified school or program.

- M-1 STUDENTS – Non-immigrant students whose primary purpose is to complete a vocational course of study at an SEVP-certified school or program.
- J-1 EXCHANGE VISITORS – Non-immigrant students selected to participate in a U.S. Department of State-designated exchange visitor program. (These programs are sponsored by an educational or other non-profit institution.)

Regarding the J-1 visa, **Shorelight** points out that there are 15 categories of purpose for foreign visitors requiring this type of visa:

- Au Pair
- Camp Counselor
- College and University Student
- Secondary School Student
- Government Visitor
- International Visitor
- Physician
- Professor
- Research Scholar
- Short-Term Scholar
- Specialist
- Summer Work Travel
- Teacher
- Trainee
- Intern

The J-1 Exchange Student Intern Visa is available only to foreign students currently enrolled and pursuing a degree at a post-secondary academic institution outside the United States, whose US internship will “fulfill the educational objectives for his or her current degree program at his or her home institution.”

The duration of J-1 visas will vary depending on the length of the program for which students are eligible. They can cover a period of time as short as a few months or as long as several years.

For more on J-1 visas, please visit this guide provided by **Shorelight** as well as the **US State Department web resource**.

Visitor Visas

The US State Department explains that “Enrollment in a short recreational course of study, which is not for credit toward a degree or academic certificate, is permitted on a visitor (B) visa. For how to apply for such a visa, [please visit this page](#).

Canadians and Bermudans do not need a visa to enrol in short programs of study that do not lead to an academic credit in the US. Chinese and Mexican students should [visit this page](#) for additional steps required for their entry to the US for short-term visas.

Visas for Dependents of F, M, and J Students

F-2 Dependent of an F-1 Student

F-2 visa holders are individuals in the US who are dependents of an F-1 student. F-2 spouses may not engage in full-time study; F-2 children may only engage in full-time study at the K-12 level. Part-time study that is recreational in nature is permitted. F-2 visa holders may not begin a course of study until a change to F-1, M-1, or J-1 status is approved.

Employment restrictions: F-2 visa holders may not take up paid work in the US.

M-2 Dependent of M-1 Student

An M-2 visa holder is an individual in the US who is a dependent of an M-1 student. M-2 spouses may not engage in full-time study; M-2 children may only engage in full-time study at the K-12 level. Part-time study that is recreational in nature is permitted. M-2 Visa holders may not begin a course of study until a change to F-1, M-1, or J-1 status is approved.

Employment restrictions: M-2 visa holders are not permitted to work in the US.

J-2 Dependent of a J-1 Exchange Visitor

J-2 dependents are individuals in the US who are dependents (spouse or unmarried child under the age of 21) of a J-1 exchange visitor. They may engage in full or part-time study.

Employment restrictions: J-2 dependents of J-1 exchange visitors are eligible to apply to USCIS for work authorization. With an EAD issued by USCIS, they may work for any employer.

[< Previous Lesson](#)[Back to Lesson](#)[Next Quiz >](#)